

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/04/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01582469 The Regents for The University of California vs. Normoxi LLC	Pending – check back later
2	30-2026-01589059 Prime/South Coast Holding, LLC vs. West	The Court has read and considered the Defendants' Demurrer to the Complaint for Unlawful Detainer (ROA 14), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 19). The Court OVERRULES the Demurrer. The Defendants are to file an Answer within 5 calendar days. Plaintiff is ordered to provide notice of the Court's ruling.
3	30-2026-01589203 Sequoia Equities - Hidden Hills vs. Gabroy	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 16), Defendant's Request for Judicial Notice (ROA 19) and the Complaint (ROA 2). The Court DENIES the request for Judicial Notice as to Exhibits 1–3, as the documents are not proper items for judicial notice under Evidence Code section 452(h).

		California Rules of Court, Rule 3.1320 states “A party filing a demurrer must serve and file therewith a notice of hearing that must specify a hearing date in accordance with the provisions of Code of Civil Procedure section 1005 and, if service is by electronic means, in accordance with the requirements of Code of Civil Procedure section 1010.6(a)(4) and rule 2.251(h)(2).” Defendant failed to provide notice and service of the demurrer on the Plaintiff as required under the applicable Code of Civil Procedure and California Rules of Court. As this was not properly noticed and served, the Demurrer is taken off calendar. The Court Clerk is to provide notice.
4	30-2026-01590441 Nguyen vs. McIntosh	The Court has read and considered the Defendants' Demurrer to Amended Complaint (ROA 11) and the Amended Complaint (ROA 7). California Civil Code § 1954.535 provides that an owner must provide a tenant subject to an agreement or contract with a government agency with 90 days' written notice of the termination of the contract. This California Civil Code section does not exempt a landlord from the requirements under the Tenant Protection of 2019 if it applies to the tenancy, requiring notice under the just cause provision under Civil Code section 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Plaintiff answered 7(b) in the Amended Complaint that the Tenant Protection Act of 2019 applies and that, under 8(a), the tenancy was terminated for at-fault just cause. The 90 Day Notice attached to the Amended Complaint does not meet the legal notice requirements for a just cause termination pursuant to Civil Code § 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint with prejudice. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant Stephanie Martin Rutledge's Notice of Motion to Set Aside the June 29, 2026 Default Money Judgment (ROA 70), Declaration in Support (ROA 73), and Reply to Motion (ROA 75). The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. No declaration of service or proof of service is attached to the Motion to Vacate, Declaration In support or Reply to Motion. The Court of Appeal held that a litigant in

		propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court takes the motion off calendar as it was not properly noticed or served. The Court Clerk is to provide notice of the Court's ruling.
7	30-2026-01577309 Yang vs. Byun	Pending – check back later
8	30-2026-01579273 Gelt Oasis Exchange, LLC vs. Clark	
9	30-2026-01578531 Sanderson J. Ray Apartments Property, LLC vs. Wright	The Court has read and considered the Motion for Stay of Execution of Judgment Pending Appeal by Randal H. Brown II (ROA 40). The Court takes Judicial Notice of the Complaint (ROA 2), Request for Entry of Default (ROA 21), 8/18/2026 Minute Order (ROA 30), Judgment-Unlawful Detainer (ROA 25), Writ of Possession (ROA 32), Ex Parte Application for Stay of Execution of Judgment Pending Appeal (ROA 35), and 8/21/2026 Minute Order (ROA 38). ROA 40 is the same request as ROA 35, except that Mr. Brown crossed out the “ex parte” language before resubmitting it as ROA 40. The Court has already ruled on the substance of the request in the Minute Order of 8/21/2026. As to ROA 40, Mr. Brown failed to provide notice and service of the Motions pursuant to California Code of Civil Procedure section 1005 on opposing counsel. No declaration of service or proof of service is attached. A person appearing in propria persona does not provide a basis for special treatment under the law; “such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys.” (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court DENIES Mr. Brown's Motion for Stay of Execution of Judgment Pending Appeal. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.